

House File 165

H-1229

1 Amend House File 165 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 256.9, Code 2025, is amended by adding
5 the following new subsections:

6 NEW SUBSECTION. 69. *a.* Develop and distribute to school
7 districts, accredited nonpublic schools, charter schools, and
8 innovation zone schools a test in multiple-choice format that
9 consists of all of the questions contained in the most recent
10 version of the civics test developed by the United States
11 citizenship and immigration services.

12 *b.* On or before the January 31 immediately subsequent to
13 each general election which is a presidential election, update
14 the test described in paragraph "*a*" and distribute the updated
15 test to school districts, accredited nonpublic schools, charter
16 schools, and innovation zone schools.

17 NEW SUBSECTION. 70. *a.* Study the relationship between high
18 school graduation rates and the number of students who attain a
19 passing score on the civics test described in section 280.9A,
20 subsection 1A, and submit a report that contains the results of
21 the study to the general assembly on or before June 30, 2029.

22 *b.* This subsection is repealed July 1, 2029.

23 Sec. 2. Section 256E.7, subsection 2, Code 2025, is amended
24 by adding the following new paragraph:

25 NEW PARAGRAPH. *Or.* Be subject to and comply with the
26 requirements of section 280.9A, subsection 1A, related to the
27 administration of a civics test in the same manner as a school
28 district.

29 Sec. 3. Section 256F.4, subsection 2, Code 2025, is amended
30 by adding the following new paragraph:

31 NEW PARAGRAPH. *r.* Be subject to and comply with the
32 requirements of section 280.9A, subsection 1A, related to the
33 administration of a civics test in the same manner as a school
34 district.

35 Sec. 4. Section 259A.1, Code 2025, is amended to read as

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(amending this HF 165 to CONFORM to SF 369)

1 follows:

2 **259A.1 Assessment of competency.**

3 The department of education shall cause to be made available
4 for qualified individuals a high school equivalency diploma.
5 The diploma shall be issued ~~on the basis of demonstrated to~~
6 qualified individuals who successfully pass the civics test as
7 set forth in section 280.9A, and demonstrate competence in all
8 of the following core areas: reading, language arts, literacy,
9 mathematics, science, and social studies.

10 Sec. 5. Section 280.9A, Code 2025, is amended by adding the
11 following new subsection:

12 NEW SUBSECTION. 1A. a. Commencing with the school year
13 beginning July 1, 2026, the board of directors of each local
14 public school district and the authorities in charge of each
15 accredited nonpublic school shall administer to students
16 enrolled in grades nine through twelve the most recent version
17 of the test distributed to the school district or accredited
18 nonpublic school by the director of the department of education
19 pursuant to section 256.9, subsection 69, in written or
20 electronic format, and shall ensure that each student receives
21 one passing score on the test as a condition of graduation.
22 The board of directors of a local public school district and
23 the authorities in charge of an accredited nonpublic school
24 shall not be required to administer the test to a student who
25 has received a passing score on the test.

26 b. A student must answer at least sixty percent of the
27 questions on the test described in paragraph "a" correctly
28 to attain a passing score. A student who fails to answer at
29 least sixty percent of the questions on such test correctly may
30 retake the test as many times as is necessary.

31 c. The board of directors of a local public school district
32 or the authorities in charge of an accredited nonpublic school
33 shall not impose or collect any fee in connection with the
34 administration of the test described in paragraph "a".

35 d. The board of directors of a local public school district

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1 and the authorities in charge of an accredited nonpublic school
2 may do all of the following:

3 (1) Modify the test described in paragraph "a" for a student
4 who has an individualized education program or a plan under
5 section 504 of the federal Rehabilitation Act, 29 U.S.C. §794.

6 (2) Develop and administer an alternate test to a student
7 who has a significant intellectual disability.

8 (3) Modify the test described in paragraph "a" for a student
9 who is an English learner as defined in section 280.4.

10 *e.* On or before June 30 of each year, the board of directors
11 of each local public school district and the authorities in
12 charge of each accredited nonpublic school shall submit the
13 results of the test described in paragraph "a" to the department
14 of education.

15 *f.* The state board of education shall adopt rules pursuant
16 to chapter 17A to administer this subsection.>

HENDERSON of Woodbury